

Buildings Energy Efficiency (Registered Energy Assessors) Regulation

(Cap. 610 sub. leg. B)

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Buildings Energy Efficiency (Registered Energy Assessors) Regulation

(Cap. 610, section 42)

(Enacting provision omitted—E.R. 1 of 2017)

[21 March 2011]

Part 1

Preliminary

1. *(Omitted as spent—E.R. 1 of 2017)*

2. **Interpretation**

In this Regulation—

correspondence address (通訊地址), in relation to a registered energy assessor, means the address provided in the latest of the following—

- (a) an application form submitted under section 4 for the registration of the assessor;
- (b) an application form submitted under section 6 for the renewal of the registration of the assessor;
- (c) an application form submitted under section 8 for the registration of the assessor;
- (d) a notice given by the assessor under section 11;

disciplinary board (紀律委員會) means a disciplinary board appointed under section 16;

submitted qualification (已呈報資格), in relation to a registered energy assessor registered by virtue of section 5(2), means the qualification provided in the latest of the following—

- (a) an application form submitted under section 4 for the registration of the assessor;
 - (b) an application form submitted under section 6 for the renewal of the registration of the assessor.
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Part 2

Registration

3. Register of Registered Energy Assessors

The Register of Registered Energy Assessors must contain in respect of every registered energy assessor—

- (a) the name of the assessor;
- (b) the registration number of the assessor;
- (c) the validity periods of all certificates of registration issued to the assessor under section 5(4)(b) or 6(6)(b); and *(L.N. 40 of 2011)*
- (d) any other details as the Director thinks fit.

4. Application for registration

- (1) A person who wishes to be registered as a registered energy assessor may make an application to the Director.
- (2) The application must—
 - (a) be in the specified form; and
 - (b) be accompanied by the prescribed fee and the documents specified in the form.
- (3) The Director may require the applicant to furnish any further information, or produce any additional document, that the Director considers reasonably necessary for the purposes of determining the application.

5. Determination of application

- (1) The Director may allow an application under section 4 if the Director is satisfied that—

(a) the applicant—

- (i) is a registered professional engineer within the meaning of section 2(1) of the Engineers Registration Ordinance (Cap. 409) and is registered in the electrical, mechanical, environmental, building services or energy discipline under that Ordinance;
- (ii) has had at least 2 years practical experience in engineering works relating to energy efficiency in buildings acquired while being so registered;
- (iii) has the knowledge required for the performance of the duties and functions of a registered energy assessor under the Ordinance; and
- (iv) is a fit and proper person to be registered; *(24 of 2025 s. 21)*

(b) the applicant—

- (i) is a corporate member of the Hong Kong Institution of Engineers in the electrical, mechanical, environmental, building services or energy discipline, or has an equivalent qualification recognized by the Institution as being of a standard not lower than that of a corporate member of the Institution in any of those disciplines;
- (ii) has had at least 3 years practical experience in engineering works relating to energy efficiency in buildings acquired while being such a member;
- (iii) has the knowledge required for the performance of the duties and functions of a registered energy assessor under the Ordinance; and
- (iv) is a fit and proper person to be registered; or *(24 of 2025 s. 21)*

- (c) the applicant—
 - (i) is a professional member of the Hong Kong Institute of Qualified Environmental Professionals, or has an equivalent qualification recognized by the Institute as being of a standard not lower than that of a professional member of the Institute;
 - (ii) has had at least 3 years practical experience in engineering works relating to energy efficiency in buildings acquired while being such a member;
 - (iii) has the knowledge required for the performance of the duties and functions of a registered energy assessor under the Ordinance; and
 - (iv) is a fit and proper person to be registered. *(24 of 2025 s. 21)*
- (2) The Director may also allow the application if the Director is satisfied that—
 - (a) the applicant's knowledge, qualification, education, experience and training, if considered as a whole—
 - (i) are comparable to those matters set out in subsection (1)(a), (b) or (c); and *(24 of 2025 s. 21)*
 - (ii) enable the applicant to perform the duties and functions of a registered energy assessor under the Ordinance; and
 - (b) the applicant is a fit and proper person to be registered.
- (2A) For the purposes of subsection (2)(a), the Director may accept the attendance or completion of any course that the Director considers relevant as the qualification or education of the applicant. *(L.N. 40 of 2011)*
- (3) In determining whether the applicant is a fit and proper person to be registered for the purposes of subsection

(1)(a)(iv), (b)(iv) or (c)(iv) or (2)(b), the Director may take into account— (*24 of 2025 s. 21*)

(a) whether the applicant has been—

(i) convicted in Hong Kong or elsewhere of any offence which, if committed by a registered energy assessor, may bring the profession of registered energy assessor into disrepute; and

(ii) sentenced to imprisonment, whether suspended or not; and

(b) whether the applicant has committed any misconduct or neglect in a professional respect.

(4) If the Director allows the application, the Director must register the applicant under section 30 of the Ordinance by—

(a) entering in the Register of Registered Energy Assessors the details specified in section 3 in respect of the applicant; and

(b) issuing a certificate of registration to the applicant.

(5) The registration is valid for the period beginning on the date on which the certificate of registration is issued and ending on the day before—

(a) the 10th anniversary of the date on which the certificate is issued; or

(b) the date on which the name of the applicant is removed from the Register of Registered Energy Assessors under section 9,

whichever is the earlier. (*L.N. 40 of 2011*)

(6) If the Director refuses the application, the Director must notify the applicant in writing of the refusal and give reasons for the decision.

6. Renewal of registration

- (1) A registered energy assessor may make an application to the Director for the renewal of the registration of the assessor.
- (2) The application must—
 - (a) be in the specified form; and
 - (b) be accompanied by the prescribed fee and the documents specified in the form.
- (3) The application must be submitted—
 - (a) at any time before the expiry of the current registration; or
 - (b) within the period of 28 days from the expiry of the current registration.
- (4) The Director may require the applicant to furnish any further information, or produce any additional document, that the Director considers reasonably necessary for the purposes of determining the application.
- (5) The Director may renew the registration of the applicant only if—
 - (a) where the registration sought to be renewed was granted by virtue of section 5(1)(a), the Director is satisfied that the applicant meets the criteria set out in that section;
 - (b) where the registration sought to be renewed was granted by virtue of section 5(1)(b), the Director is satisfied that the applicant meets the criteria set out in that section; *(24 of 2025 s. 22)*
 - (ba) where the registration sought to be renewed was granted by virtue of section 5(1)(c), the Director is satisfied that the applicant meets the criteria set out in that section; or *(24 of 2025 s. 22)*

- (c) where the registration sought to be renewed was granted by virtue of section 5(2), the Director is satisfied that the applicant meets the criteria set out in that section.
- (6) If the Director allows the application, the Director must—
 - (a) amend the Register of Registered Energy Assessors to reflect the renewal; and
 - (b) issue a new certificate of registration to the applicant.
- (7) If the Director refuses the application, the Director must notify the applicant in writing of the refusal and give reasons for the decision.

7. Validity of renewed registration

- (1) A registration renewed under section 6 is valid— (*L.N. 40 of 2011*)
 - (a) if the application for the renewal was submitted within the period of 4 months immediately before the expiry of the current registration, for the period beginning on the date on which a certificate under section 6(6)(b) is issued in respect of the application and ending on— (*L.N. 40 of 2011*)
 - (i) the 10th anniversary of the expiry date of the current registration; or
 - (ii) the day before the date on which the name of the applicant is removed from the Register of Registered Energy Assessors under section 9,whichever is the earlier;
 - (b) if the application for the renewal was submitted more than 4 months before the expiry of the current registration, for the period beginning on the date on which a certificate under section 6(6)(b) is issued

in respect of the application and ending on the day before— (*L.N. 40 of 2011*)

- (i) the 10th anniversary of the date on which the certificate is issued; or
- (ii) the date on which the name of the applicant is removed from the Register of Registered Energy Assessors under section 9, whichever is the earlier; or
- (c) if the application for the renewal was submitted within the period specified in section 6(3)(b), for the period beginning on the date on which a certificate under section 6(6)(b) is issued in respect of the application and ending on— (*L.N. 40 of 2011*)
 - (i) the 10th anniversary of the expiry date of the current registration; or
 - (ii) the day before the date on which the name of the applicant is removed from the Register of Registered Energy Assessors under section 9, whichever is the earlier. (*L.N. 40 of 2011*)

(2) In this section—

current registration (現有註冊), in relation to an application for the renewal of a registration under section 6, means the registration sought to be renewed.

8. Registration of public officers

- (1) A public officer may make an application to the Director for registration as a registered energy assessor under this section.
- (2) The application must be in the specified form.
- (3) The Director may require the public officer to furnish any further information, or produce any additional document, that

the Director considers reasonably necessary for the purposes of determining the application.

- (4) The Director may allow the application only if the Director is satisfied that—
- (a) the public officer is applying in the capacity of a public officer;
 - (b) the official duties of the public officer require the officer to perform the duties and functions of a registered energy assessor under the Ordinance; and
 - (c) the public officer is a fit and proper person to be registered.
- (5) In determining whether the public officer is a fit and proper person to be registered for the purposes of subsection (4)(c), the Director may take into account—
- (a) whether the officer has been—
 - (i) convicted in Hong Kong or elsewhere of any offence which, if committed by a registered energy assessor, may bring the profession of registered energy assessor into disrepute; and
 - (ii) sentenced to imprisonment, whether suspended or not; and
 - (b) whether the officer has committed any misconduct or neglect in a professional respect.
- (6) If the Director allows the application, the Director must register the public officer under section 30 of the Ordinance by—
- (a) entering in the Register of Registered Energy Assessors the details specified in section 3 in respect of the officer; and
 - (b) notifying the officer in writing of the registration.

- (7) The registration is valid for the period beginning on the date on which the notification under subsection (6)(b) is issued and ending on the date on which the public officer's name is removed from the Register of Registered Energy Assessors under section 9.
- (8) If the Director refuses the application, the Director must notify the public officer in writing of the refusal and give reasons for the decision.

9. Removal from Register of Registered Energy Assessors

- (1) The Director may remove from the Register of Registered Energy Assessors the name of any person if—
 - (a) the person has died;
 - (b) the person has requested to discontinue the person's registration;
 - (c) where the person is registered by virtue of section 5(1)(a), the person does not meet or no longer meets the criterion set out in section 5(1)(a)(i);
 - (d) where the person is registered by virtue of section 5(1)(b), the person does not meet or no longer meets the criterion set out in section 5(1)(b)(i);
 - (da) where the person is registered by virtue of section 5(1)(c), the person does not meet or no longer meets the criterion set out in section 5(1)(c)(i); *(24 of 2025 s. 23)*
 - (e) where the person is registered by virtue of section 5(2), the person does not hold or no longer holds a submitted qualification;
 - (f) where the person is registered under section 8, the person is no longer a public officer, or the official duties of the person no longer require the person to perform

- the duties and functions of a registered energy assessor under the Ordinance;
- (g) the registration of the person has expired; or
 - (h) the disciplinary board has made an order under section 19(1)(a) for the removal of the person's name from the Register of Registered Energy Assessors.
- (2) If the Director intends to remove the name of any person under subsection (1)(b), (c), (d), (da), (e), (f), (g) or (h), the Director must— *(24 of 2025 s. 23)*
- (a) notify the person in writing of the intention and the ground for the removal by registered post addressed to the correspondence address of the person; and
 - (b) specify in the notice the date on which the name will be removed, which date must not be earlier than 28 days after the date of posting the notice.
- (3) If the Director gives notice to the person, the person (other than a person mentioned in subsection (1)(b) or (h)) may make representation to the Director before the date specified in the notice to show cause why the person's name should not be removed.
- (4) If, after considering the representation (if any), the Director is satisfied that—
- (a) in the case of a removal under subsection (1)(c), the person meets the criterion set out in section 5(1)(a)(i);
 - (b) in the case of a removal under subsection (1)(d), the person meets the criterion set out in section 5(1)(b)(i);
 - (ba) in the case of a removal under subsection (1)(da), the person meets the criterion set out in section 5(1)(c)(i); *(24 of 2025 s. 23)*
 - (c) in the case of a removal under subsection (1)(e), the person holds the submitted qualification concerned;

- (d) in the case of a removal under subsection (1)(f), the person is still a public officer, and the official duties of the person still require the person to perform the duties and functions of a registered energy assessor under the Ordinance; or
 - (e) in the case of a removal under subsection (1)(g), the registration of the person has not expired,
the Director must not remove the name of the person on the ground set out in the notice.
- (5) *(Repealed L.N. 40 of 2011)*

10. Duplicate of certificate of registration

- (1) The Director may, on an application by a registered energy assessor, issue to the assessor a duplicate of the assessor's certificate of registration.
- (2) The application must—
 - (a) be in the specified form; and
 - (b) be accompanied by the prescribed fee and the documents specified in the form.

11. Change in particulars

- (1) A registered energy assessor must notify the Director of any change in the assessor's name or correspondence address—
 - (a) within 28 days of the change; and
 - (b) in the specified form and accompanied by the documents specified in the form.
- (2) The Director may, on receiving the notice, amend the Register of Registered Energy Assessors to reflect the change.

- (3) A person who, without reasonable excuse, contravenes subsection (1) commits an offence and is liable on conviction to a fine at level 1.

12. Registered energy assessors cease to hold qualification

- (1) If a registered energy assessor registered by virtue of section 5 ceases to hold a qualification specified in subsection (2), the assessor must notify the Director of the fact—
- (a) within 28 days—
 - (i) from the cessation; or
 - (ii) from the date on which the assessor is informed of the cessation,whichever is the later; and
 - (b) in the specified form and accompanied by the documents specified in the form.
- (2) The qualification is—
- (a) for a registered energy assessor registered by virtue of section 5(1)(a), (b) or (c), the qualification mentioned in section 5(1)(a)(i), (b)(i) or (c)(i), as the case may be; *(24 of 2025 s. 24)*
 - (b) for a registered energy assessor registered by virtue of section 5(2), a submitted qualification.
- (3) A person who, without reasonable excuse, contravenes subsection (1) commits an offence and is liable on conviction to a fine at level 2.
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Part 3

Disciplinary Proceedings

13. Commencement of disciplinary proceedings

- (1) The Director may institute disciplinary proceedings against a registered energy assessor if the Director considers there is evidence that the assessor—
 - (a) has failed to comply with the Ordinance; or
 - (b) has been convicted in Hong Kong or elsewhere of any offence, or has been negligent or misconducted himself or herself in a professional respect, and the conviction, negligence or misconduct—
 - (i) renders the assessor unfit to be a registered energy assessor;
 - (ii) makes the inclusion in the Register of Registered Energy Assessors of the assessor prejudicial to the due administration of the Ordinance; or
 - (iii) renders the assessor deserving of censure.
- (2) If the Director decides to institute disciplinary proceedings against a registered energy assessor, the Director may, after considering the nature and the seriousness of the matter concerned—
 - (a) subject to subsection (3), determine the case under section 14; or
 - (b) refer the case to the Secretary by notice in writing.
- (3) The Director must refer a case to the Secretary under subsection (2)(b) if— (*L.N. 40 of 2011*)
 - (a) the case falls within subsection (1)(b)(i) or (ii); or

- (b) at any time before the Director determines the case under section 14(3), the registered energy assessor has requested the case to be heard by a disciplinary board.

14. Determination of Director

- (1) If the Director decides under section 13(2)(a) to determine a case under this section, the Director must give a notice to the registered energy assessor concerned—
 - (a) specifying the ground for instituting disciplinary proceedings against the assessor;
 - (b) advising the assessor that the assessor is entitled to make a written submission to the Director in respect of the case.
- (2) The written submission must be delivered to the Director within 28 days after the date of the notice under subsection (1).
- (3) The Director may determine the case—
 - (a) at any time after considering the written submission made in respect of the case; or
 - (b) if no written submission is made in respect of the case within the period mentioned in subsection (2), at any time after the end of that period.
- (4) If the Director is satisfied that the matter mentioned in section 13(1)(a) or (b)(iii) is established in respect of the registered energy assessor, the Director may—
 - (a) order that the assessor be reprimanded; and
 - (b) publish the order in the Gazette.
- (5) The Director must notify the registered energy assessor of—
 - (a) the determination; and

- (b) if the Director makes an order under subsection (4), the reasons for the order.

15. Disciplinary board panel

- (1) The Secretary is to appoint the members of a disciplinary board panel which is to consist of—
 - (a) not more than 10 members who are corporate members of the Hong Kong Institution of Engineers and are in the electrical discipline;
 - (b) not more than 10 members who are corporate members of the Hong Kong Institution of Engineers and are in the mechanical discipline;
 - (c) not more than 10 members who are corporate members of the Hong Kong Institution of Engineers and are in the building services discipline;
 - (d) not more than 10 members who are corporate members of the Hong Kong Institution of Engineers and are in the environmental discipline; (*L.N. 40 of 2011*)
 - (da) not more than 10 members who are corporate members of the Hong Kong Institution of Engineers and are in the energy discipline; (*24 of 2025 s. 25*)
 - (e) not more than 10 members who are members of the Engineers Registration Board established under the Engineers Registration Ordinance (Cap. 409); (*L.N. 40 of 2011; 24 of 2025 s. 25*)
 - (ea) not more than 10 members who are professional members of the Hong Kong Institute of Qualified Environmental Professionals; and (*24 of 2025 s. 25*)
 - (f) not more than 10 members who are not, in the opinion of the Secretary, from the engineering profession. (*L.N. 40 of 2011*)

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- (2) A person who is in 2 or more of the 7 disciplines mentioned in paragraphs (a), (b), (c), (d), (da), (e) and (ea) of subsection (1) is, for the purpose of subsections (1) and (7)(d), regarded as being in only one of those disciplines designated by the Secretary at the time of the person's appointment. *(24 of 2025 s. 25)*
- (3) A person is eligible for appointment under subsection (1) only if the person—
- (a) is not a public officer; and
 - (b) (in the case of an appointment under subsection (1)(a), (b), (c), (d), (da), (e) or (ea)) has practised in the engineering profession in Hong Kong for at least 10 years. *(L.N. 40 of 2011; 24 of 2025 s. 25)*
- (4) A member of the disciplinary board panel is to be appointed for a term of 3 years and may be reappointed on the expiry of a term.
- (5) The Secretary must give notice in the Gazette of any appointment or reappointment under this section.
- (6) A member of the disciplinary board panel may, at any time, resign by issuing a notice in writing to the Secretary.
- (7) The Secretary may terminate the office of a member of the disciplinary board panel if the Secretary is satisfied that the member—
- (a) has become a public officer;
 - (b) has become bankrupt or has entered into a voluntary arrangement within the meaning of section 2 of the Bankruptcy Ordinance (Cap. 6) with his or her creditors;
 - (c) is incapacitated by physical or mental illness;
 - (d) has ceased to be of the capacity by virtue of which the person was appointed; or

- (e) is otherwise unable or unfit to perform the functions of a member.
- (8) The Secretary must give notice in the Gazette of any termination of office under this section.

16. Disciplinary board

- (1) Within 21 days after receiving a notice under section 13(2)(b), the Secretary must appoint from among the members of the disciplinary board panel a disciplinary board to hear the case concerned.
- (2) A disciplinary board is to consist of 7 members appointed from 7 different categories of members specified in section 15(1), one of whom must be a member appointed under section 15(1)(f). (*L.N. 40 of 2011; 24 of 2025 s. 26*)
- (3) Subject to section 17(5), if a vacancy occurs in a disciplinary board, the Secretary must, as soon as practicable, make appointment from among the members of the disciplinary board panel to fill the vacancy.
- (4) The members of the disciplinary board must elect a Chairperson from among themselves to preside at the hearing.
- (5) The members of a disciplinary board may be paid out of the general revenue any remuneration that the Financial Secretary determines.

17. Proceedings of disciplinary board

- (1) The quorum for a hearing of a disciplinary board is 3 members.
- (2) Any question before a disciplinary board must be determined by a majority of the members present.
- (3) If there is an equality of votes in respect of any question to be determined at the hearing, the Chairperson of a disciplinary

board has a casting vote in addition to his or her original vote.

- (4) A disciplinary board may perform any of its functions, and its proceedings are valid, despite—
 - (a) subject to subsection (5), a vacancy in the board; or
 - (b) a defect in the appointment or qualification of a person purporting to be a member of the board.
- (5) If—
 - (a) any vacancy occurs in the office of an original member of a disciplinary board; and
 - (b) as a result fewer than 3 original members of the board remain in office,the board must be dissolved and the Secretary is deemed to have received a notice delivered under section 13(2)(b) in relation to the case for which the original disciplinary board was appointed.
- (6) In the performance of their functions under this Ordinance, the members of a disciplinary board have the same privileges and immunities as a judge of the Court of First Instance has in civil proceedings in that court.
- (7) A person appearing at a hearing before a disciplinary board as a witness, a party to the hearing or a representative of a party to the hearing is entitled to the same privileges and immunities as the person would have in civil proceedings in the Court of First Instance.
- (8) Subject to this Regulation, a disciplinary board may determine its own procedure.

18. Hearing

- (1) At a hearing before a disciplinary board in respect of a registered energy assessor, the Director and the assessor are

parties to the hearing.

- (2) The Chairperson of a disciplinary board must notify the parties of the date, time and place of the hearing at least 14 days before the hearing.
- (3) At a hearing before a disciplinary board—
 - (a) the registered energy assessor may be represented by a barrister or solicitor; and
 - (b) the Director may be represented by—
 - (i) a barrister or solicitor; or
 - (ii) a public officer.
- (4) A disciplinary board may engage any barrister or solicitor to attend a hearing of the board to advise it on any matter relating to the hearing.
- (5) The hearing must be open to the public unless the disciplinary board determines that there is a good reason for it to be held in camera.
- (6) A disciplinary board may, by a notice signed by the Chairperson and issued to a person—
 - (a) direct the person to attend before the board and to give evidence; or
 - (b) direct the person to produce documents.
- (7) A person who fails to comply with a direction under subsection (6) commits an offence and is liable on conviction to a fine at level 5.
- (8) Despite subsection (6), no person to whom a direction is given under that subsection is required to give any evidence or produce any document which— (*L.N. 40 of 2011*)
 - (a) tends to incriminate himself or herself; or

- (b) the person would on grounds of legal professional privilege be entitled to refuse to give or produce.
(*L.N. 40 of 2011*)

19. Determination of disciplinary board

- (1) If, after a hearing conducted under this Part, a disciplinary board is satisfied that the matter mentioned in section 13(1) is established in respect of a registered energy assessor, the board may make any or all of the following orders—
 - (a) an order that the name of the assessor be removed from the Register of Registered Energy Assessors;
 - (b) an order that the assessor be reprimanded;
 - (c) (if an order is made under paragraph (a)) an order that the Director must not allow an application from the assessor for registration as a registered energy assessor within a period directed by the board;
 - (d) an order that a fine of not more than \$25,000 be imposed on the assessor;
 - (e) an order that its findings and any order made under this subsection be published in the Gazette.
- (2) The disciplinary board may, if it is satisfied that it is just and equitable in all circumstances of the case to do so, make any order that it thinks fit with regard to the payment of— (*L.N. 40 of 2011*)
 - (a) costs or expenses of the hearing; or
 - (b) costs or expenses of the Director or any other person in the proceedings.
- (3) A fine imposed under subsection (1) and costs and expenses ordered to be paid under subsection (2) are recoverable as a civil debt.